



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

April 21, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20835
(FOURTH REVISION)

EXPIRATION DATE: 2029-03-31

1. GRANTEE: Nouryon Functional Chemicals LLC
La Porte, TX
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 4.2 and Division 4.3 hazardous materials in MC 331 cargo tank motor vehicles with filling/discharge connections external to the tank, and a recirculation inlet opening external to the tank that is not equipped with the required internal self-closing stop valve with remote and thermal means of activation. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.337-8(a)(3) and (4) in that internal self-closing stop valves are not required, and § 178.337-10(f) in that a shear section is not required.
5. BASIS: This special permit is based on the application of Nouryon Functional Chemicals LLC, dated March 4, 2025, submitted in accordance with § 107.109.

Tracking Number: 2025034430

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Organometallic substance, liquid, water-reactive, flammable	4.3	UN3399	I
Organometallic substance, liquid, pyrophoric, water-reactive	4.2	UN3394	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are MC 331 cargo tank motor vehicles with filling/discharge connections external to the tank, and a recirculation inlet opening external to the tank that is not equipped with the required internal self-closing stop valve with remote and thermal means of activation. The filling/discharge connections are in the rear recessed well on the top of the cargo tank, and the recirculation inlet opening is located in the front recessed well on the top of the cargo tank. A shear section(s) located within either recessed well of the cargo tank mandated by section § 178.337-10(f) is not required. External valve arrangement must be in accordance with Akzo Drawings OMS-A025 Rev. 0 and OMS-A026 Rev. 0 on file with the Office of Hazardous Materials Safety (OHMS).

b. TESTING:

(1) Each cargo tank must be re-inspected and retested in accordance with § 180.407 as prescribed for a DOT specification MC 331 cargo tank.

(2) All components in the recessed wells must undergo ultrasonic corrosion inspections at five-year intervals in accordance with testing procedure PSTS-UT-001 Rev 0, on file with OHMS.

c. OPERATIONAL CONTROLS:

(1) The recirculation valve must be closed and covered by a blank flange during loading, unloading, and transportation.

(2) The front recessed well must remain closed and sealed with a high-security wire seal during loading, unloading, and transportation.

(3) The front recessed well must be plainly marked “NOT A LIQUID/VAPOR DISCHARGE OPENING ANFCLLC USE ONLY”.

d. MARKING: Each cargo tank must be plainly marked on the right side near the front, in letters two inches high on a contrasting background, “DOT-SP 20835”.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Drivers must have been instructed as to the necessary safeguards and procedures in the event of unusual delay, fire, or accident.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal

hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: JN